

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JOSEPH BELL,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
KENNETH ANDERSON, Shield No. 20515, SERGEANT
DANI GALLAGHER and POLICE OFFICERS JOHN
DOES #1-10 (names and numbers of whom are unknown at
present), and other unidentified members of the New York
City Police Department,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

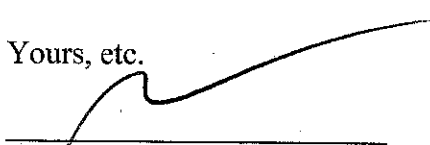
Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 28, 2015

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer Kenneth Anderson, Shield No. 20515, 77th Precinct
Sergeant Dani Gallagher, 77th Precinct

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JOSEPH BELL,

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
KENNETH ANDERSON, Shield No. 20515, SERGEANT
DANI GALLAGHER and POLICE OFFICERS JOHN
DOES #1-10 (names and numbers of whom are unknown at
present), and other unidentified members of the New York
City Police Department,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff JOSEPH BELL, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On January 29, 2014, at approximately 12:00 p.m., plaintiff Joseph Bell was lawfully present inside of his home located at 1063 Pacific Street, Apt. 3B, Brooklyn, New York, when the individually named defendant police officers and several "John Doe" New York City police officers from the 77th Precinct, entered plaintiff's home, and proceeded to unlawfully seize, unlawfully search, falsely arrest, falsely imprison, assault, and batter plaintiff. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, falsely arrested and used excessive force against plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Joseph Bell is a resident of the state of New York.

3. Police Officer Kenneth Anderson, Shield No. 20515, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Police Officer Kenneth Anderson, Shield No. 20515, is and was at all times relevant herein, assigned to the 77th Precinct.

5. Police Officer Kenneth Anderson, Shield No. 20515 is being sued in his individual and official capacity.

6. Sergeant Dani Gallagher is being sued in his individual and official capacity.

7. Sergeant Dani Gallagher is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. Sergeant Dani Gallagher is and was at all times relevant herein, assigned to the 77th Precinct.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does #1-10 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claims against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On January 29, 2014, plaintiff Joseph Bell lived at 1063 Pacific Street, Apt. 3B, Brooklyn, New York.

18. On or about January 29, 2014, at approximately 12:00 p.m., plaintiff was in his apartment sleeping when his wife woke him up to report that she heard a banging at the door.

19. Plaintiff's wife approached his front door and asked who was there, to which the individually named defendant police officers identified themselves as police officers and demanded that plaintiff and his wife get to the floor.

20. Plaintiff went into the hallway and immediately got to the floor.

21. Plaintiff and his wife own three dogs that began to bark because of the commotion.

22. The defendant police officers then ordered plaintiff and his wife to put the dogs in the bathroom and close the door.

23. Plaintiff and his wife complied with the officers' request, placed the dogs in the bathroom, closed the bathroom door, and returned to the floor of the hallway.

24. The defendant police officers then demanded that plaintiff's wife open the door to the apartment and plaintiff's wife immediately complied with the officers' request and opened the door.

25. The individually named police officer defendants then proceeded to handcuff and arrest plaintiff without probable cause or legal justification.

26. The defendant police officers brought plaintiff out of his apartment against his will, and only wearing a t-shirt in the freezing cold.

27. Without reasonable suspicion, probable cause, or any legal justification, the defendant police officers then searched plaintiff's entire apartment without his consent.

28. At no time were any illegal contraband or substances found in plaintiff's possession, custody, or control.

29. Plaintiff was escorted by the defendant police officers in handcuffs to the top of the stairwell landing on the second floor of the building.

30. Plaintiff and his wife told the police officers that plaintiff has a permanent leg injury that requires him to wear a leg brace at all times, and that plaintiff needed support getting down the stairs in handcuffs because he could not hold onto the railing.

31. Nevertheless, without any legal justification, the defendant police officers pushed plaintiff ahead of them on the stairwell, causing plaintiff to slip, fall, and hit his lower back on a number of stairs as he slipped down the stairwell, causing injury to plaintiff's lower back and left leg.

32. Plaintiff was helped down the remainder of the stairwell and placed in a police vehicle in handcuffs.

33. The defendant police officers transported plaintiff to the 77th Precinct without cause or legal justification.

34. Numerous neighbors and other passer-bys witnessed plaintiff being led out of his apartment and into the police vehicle in handcuffs.

35. At no time did plaintiff Joseph Bell commit a crime, nor did the defendant police officers have probable cause to believe he committed a crime.

36. While at the precinct, the defendant police officers falsely communicated to the Brooklyn District Attorney's Office that plaintiff had committed a crime.

37. After approximately 10 hours in a holding cell at the 77th precinct, plaintiff was transported to Brooklyn Central Booking and placed into a filthy holding cell.

38. After approximately 28 hours in police custody, on January 30, 2014 at approximately 4:00 p.m., plaintiff was arraigned and released on his own recognizance.

39. All charges against plaintiff were dismissed on July 29, 2014.

40. Thereafter, plaintiff visited Kings County Hospital Center to receive medical treatment for the injuries he sustained when he was pushed down the stairwell by the defendant police officers, including but limited to severe pain in his lower back and left leg, and numbness and tingling in his left leg.

41. Plaintiff experienced humiliation and embarrassment because his neighbors and other acquaintances in the apartment building that saw plaintiff being led out of the building in handcuffs.

42. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, false arrest, false imprisonment, assault, and battery of plaintiff.

43. The unlawful search, seizure, false arrest, false imprisonment, assault, battery, and use of excessive force of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights

44. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.

45. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully searched, seized, and falsely imprisoned, in violation of plaintiff's right to be free of an unreasonable seizure and under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

46. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

48. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The illegal search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

54. Defendants lacked probable cause to search plaintiff and/or plaintiff's apartment.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

56. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

58. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Assault

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.

60. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

61. Defendants were at all times an agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Battery

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner pushed plaintiff down the stairs with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

65. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

66. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Negligence

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. Defendants owed a duty of care to plaintiff.

69. To the extent defendants claim that the injuries to plaintiff's person by the defendant police officers was unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by accidentally and negligently shoving and pushing plaintiff and assaulting and battering plaintiff.

70. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

71. All of the foregoing occurred without any fault or provocation by plaintiff.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

73. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Joseph Bell. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

75. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

77. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

NINTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

79. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 78 with the same force and effect as if more fully set forth at length herein.

80. The use of excessive force by defendants by, amongst other things, pushing plaintiff down a flight of stairs constituted objectively unreasonable physical seizures of plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

81. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

TENTH CAUSE OF ACTION

Failure to Intervene

82. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 81 with the same force and effect as if more fully set forth at length herein.

83. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

84. Defendants failed to intervene to prevent the unlawful conduct described herein.

85. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

86. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

87. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

JURY DEMAND

88. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Joseph Bell demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 28, 2015

By: _____

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
(212) 577-2690

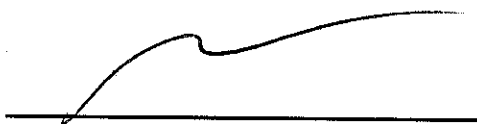
TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer Kenneth Anderson, Shield No. 20515, 77th Precinct
Sergeant Dani Gallagher, 77th Precinct

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 28, 2015



STUART E. JACOBS